

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC039344: RONALD MERINO vs FCA US, LLC., et al.

07/29/2026 in Department 44

**Motion to Compel INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF
CIVIL PROCEDURE 871.26 AND REQUEST FOR MONETARY SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure § 871.26 and Request for Monetary Sanctions

Tentative Ruling:

Plaintiff’s Motion to Compel is DENIED in part as moot; Defendant indicates in its untimely opposition that it produced the initial disclosures that are the subject of this motion on June 10, 2026.

The Motion is GRANTED in part as to Sanctions in the amount of \$2,500, payable by defense counsel to plaintiff’s counsel within 15 days pursuant to Code of Civil Procedure, section 871.26(j)(1). Plaintiff established that Defendant failed to provide a complete and timely initial disclosure of documents under Code of Civil Procedure section 871.26. Defendant does not establish good cause for the delay. Defendant’s opposition implies that the delay in production documents was due to Plaintiff failure to execute a stipulated protective order. That protective order was entered by the Court on June 17, 2026. The parties’ signatures on it, however, reflect that Plaintiff signed the stipulated protective order nine months earlier, on September 18, 2025.

For whatever reason, Defendant did not sign the document until June 9, 2026 and produced the documents one day thereafter.

Moving party to give notice.